Terms of Use of the Heatmapa Mobile Application

of **heatmapa s.r.o.**, with its registered office at Pod vinohradem 211/7, Braník, 147 00 Prague, Czech Republic, Company ID (IČO): 244 19 010, VAT ID (DIČ): CZ24419010, registered in the Commercial Register kept by the Municipal Court in Prague under file No. C 440662, e-mail: info@heatmapa.com (the "Operator")

> This English translation is provided for convenience only. The Czech version of these Terms is the authoritative and legally binding version (Article 19.5).

I. Introductory Provisions

1.1 These terms of use (the "Terms") govern, in accordance with Section 1751(1) of Act No. 89/2012 Coll., the Civil Code, as amended (the "Civil Code"), the mutual rights and obligations arising between the Operator and Users in connection with the use of the Heatmapa mobile application.

1.2 The Terms apply to all Users regardless of the manner in which they use the Application, in particular to:

a) Users who merely browse the content of the Application without creating any content themselves;

b) Users who create content in the Application, in particular Events or the content of their profile;

c) Users who, as Authorised Persons, perform Venue Administration or Event Administration;

d) Business Users who use the Paid Services.

1.3 There is a single type of user account in the Application; no separate accounts are established for the individual manners of use referred to in Article 1.2 of the Terms. These Terms apply to all Users without distinction and in their entirety.

1.4 The User expresses consent to these Terms by ticking the relevant box during registration and by using the Application. By expressing consent, the User confirms that they have read the Terms before starting to use the Application, have understood their content and undertake to comply with them. The Terms apply throughout the entire period of use of the Application.

1.5 The Application is an information society service within the meaning of Act No. 480/2004 Coll., on Certain Information Society Services, as amended. In relation to content stored by Users, the Operator acts as a provider of a hosting service within the meaning of Article 6 of Regulation (EU) 2022/2065 of the European Parliament and of the Council on a Single Market for Digital Services (the "DSA Regulation").

II. Definitions

2.1 For the purposes of these Terms, the terms below have the following meaning:

a) **Application** – the Heatmapa mobile application operated by the Operator, which displays to Users on an interactive map Venues, Events and, under the conditions set out in these Terms, the location and Check-ins of other Users;

b) **User** – a natural person who has concluded a contract on the use of the Application with the Operator in accordance with Article V of the Terms;

c) **Check-in** – a voluntary indication of the User's presence at a particular place or Event, made by the User themselves in the Application;

d) **Venue** – a bar, club, restaurant, café or other establishment displayed on the map in the Application;

e) **Event** – a cultural, social, sporting or other event displayed in the Application;

f) **Organiser** – a person who organises an Event or is authorised to organise it; an Organiser may also be a User;

g) **Authorised Person** – a person authorised to perform Venue Administration or Event Administration, i.e. in particular the owner or operator of the Venue, a member of its governing body, an employee entrusted with this task or a representative acting on the basis of a power of attorney or other authorisation, or the Organiser of an Event or a person authorised by the Organiser;

h) **Venue Administration / Event Administration** – the set of functions of the Application enabling an Authorised Person to edit the profile of a Venue or Event, publish content, use the Paid Services and communicate with Users;

i) **Business User** – a person who performs Venue Administration or Event Administration in the Application or uses the Paid Services;

j) **Paid Services** – paid services intended for Business Users, in particular Venue Premium, Notification Packages and Event Boost pursuant to Article XI of the Terms;

k) **Venue Premium** – a Paid Service provided in the form of an automatically renewed monthly subscription, the subject of which is the highlighting of the Venue on the map and access to further functions described in the Application;

l) **Notification Package** – a Paid Service consisting in a one-off acquired right to send a set number of notifications to Users via the Application;

m) **Event Boost** – a Paid Service consisting in the highlighting of an Event on the map, paid for by a one-off fee.

III. Description and Nature of the Service

3.1 The Application enables the User in particular to:

a) display on an interactive map Venues and Events in the User's vicinity, including personalised recommendations and notifications based on the User's preferences;

b) share their location and Check-ins with Users with whom they have mutually confirmed friendship, and display the location and Check-ins of such Users;

c) create Events under the conditions set out in Article VIII of the Terms;

d) perform Venue Administration or Event Administration, if the User is an Authorised Person, and use the Paid Services;

e) create a user profile, link it to accounts on social networks and be visible at Events in which they participate and at Venues which they follow;

f) share content outside the Application through sharing functions which generate simple graphics intended for sharing outside the Application, for example in messages or on social networks (such as Instagram Stories).

3.2 The results and recommendations displayed in the Application are adapted to the User's current location, preferences and previous interactions. Recommendations may be generated algorithmically, including with the use of artificial intelligence, and may not correspond to the User's expectations.

3.3 The Operator is entitled to unilaterally change the territorial scope in which the Application is provided.

3.4 The content of the Application is of an informative nature. The Operator does not guarantee the accuracy, completeness or currency of information about third-party Venues and Events.

IV. Conditions of Use of the Application

4.1 The Application is intended exclusively for persons over 18 years of age, as it displays content related to nightlife, in particular places and Events where alcohol is consumed. Registration is conditional on providing a date of birth; persons who, according to the date of birth provided, have not reached the age of 18 are not permitted to register.

4.2 By registering, the User declares that they are over 18 years of age and that the date of birth provided by them is true. If the Operator discovers that this declaration is untrue, it is entitled to cancel the user account without compensation.

V. Registration and User Account

5.1 The use of the Application is conditional on downloading it to the User's device, completing registration and expressing consent to these Terms. Upon completion of registration, a contract on the use of the Application is concluded between the Operator and the User.

5.2 The mandatory data required upon registration are: e-mail address, first name, surname, date of birth, nickname and profile photograph. Registration is carried out by means of an e-mail address and password.

5.3 The User is obliged to provide only current, true and complete data upon registration and throughout the entire period of use of the Application, and to update such data without undue delay in the event of any change. The User is responsible for the accuracy of the data provided.

5.4 The User is not entitled to create more than one user account, to create an account under the identity of another person, to impersonate another person, Venue or brand, or to make their account available to a third party. If the User's account has been permanently blocked, the User is not entitled to create a new account. Breach of the obligations under this paragraph entitles the Operator to suspend or cancel the account.

5.5 The User is obliged to maintain the confidentiality of their login credentials and to secure the device on which they use the Application. The User is responsible for all acts carried out through their account. If the User discovers unauthorised access to their account or any other breach of its security, they are obliged to inform the Operator thereof without undue delay by e-mail at support@heatmapa.com, which serves as a dedicated user support channel. Through this address, the User is also entitled to notify the Operator of any other serious matters related to the use of the Application, in particular theft or misuse of an account, impersonation of another person, security threats, unlawful conduct, or stalking or harassment of other persons.

5.6 The User is entitled to cancel their account at any time in the settings of the Application; upon cancellation of the account, the contractual relationship between the User and the Operator terminates. The cancellation of the account does not affect payments already made for the Paid Services or the Operator's claims arising before the date of cancellation of the account.

VI. User Profile and Its Visibility

6.1 During registration, the User creates a user profile, the mandatory components of which are a profile photograph and a nickname; the User may further add links to their accounts on social networks.

6.2 The profile photograph, nickname or other content of the profile must not contain, in particular:

a) pornographic, erotic or otherwise sexually explicit content;

b) violent, cruel or otherwise shocking content;

c) hateful symbols, expressions of extremism, racism, antisemitism or other forms of discrimination or incitement to hatred;

d) promotion of narcotic and psychotropic substances, weapons or other unlawful conduct;

e) likenesses of third parties published without their consent or depictions of minors;

f) content infringing the intellectual property rights of third parties;

g) advertising messages, QR codes, contact details or links serving commercial communication;

h) content that is misleading or capable of causing confusion with another person, Venue or brand;

i) vulgar expressions or other content contrary to good morals.

The Operator is entitled to remove a non-compliant photograph or other profile content and to request the User to replace it; if the User fails to comply with the request within a reasonable period, the Operator is entitled to suspend the user account.

6.3 The User acknowledges that their profile is made available to other Users to the following extent:

a) Users with whom the User has mutually confirmed friendship can see their location on the map, unless the User has switched off location sharing;

b) the User's profile is always displayed at Events for which the User has confirmed participation and at Venues which the User follows; however, it is displayed exclusively to Users with whom the User has mutually confirmed friendship;

c) links to social networks placed on the profile are visible to anyone to whom the User's profile is made available pursuant to points a) and b).

6.4 The only privacy setting available in the Application is switching off location sharing pursuant to Article 7.1 of the Terms; the display of the profile at Events and followed Venues pursuant to Article 6.3(b) of the Terms cannot be switched off separately. The User is responsible for ensuring that the content of their profile does not infringe the rights of third parties or these Terms.

VII. Location Data and Check-ins

7.1 Location sharing is voluntary. The User grants access to the device's location through the settings of their device and is entitled to switch off location sharing at any time in the settings of the device or in the settings of the Application. The User acknowledges that certain functions of the Application (in particular the map of the surroundings, notifications about nearby friends and Venues, and Check-ins) are conditional on active access to location.

7.2 The User's location and Check-ins are visible exclusively to Users with whom the User has mutually confirmed friendship. The User's location is not public and is not displayed to Users outside this circle. Business Users do not have access to the precise location of Users; only aggregate and anonymised statistics may be made available to them.

7.3 The use of the Application for monitoring, stalking, intimidating or harassing any person is prohibited. Breach of this prohibition constitutes grounds for immediate permanent blocking of the account; in serious cases, the Operator will report the matter to law enforcement authorities.

7.4 The processing of the User's personal data, including location data, is governed by the Operator's Privacy Policy available at heatmapa.com/privacypolicy and heatmapa.cz/privacypolicy, which supplements these Terms.

7.5 For the purpose of connecting with friends, the Application may request the User's access to their contacts. Granting access is voluntary and the access serves exclusively to find persons who already use the Application or to send an invitation. The User is not entitled to collect the contacts of other persons in bulk through the Application or to use them for other purposes.

VIII. Adding and Administration of Venues and Events

8.1 The following rules apply to the adding of Venues and Events to the Application:

a) a Venue may be added to the map and subsequently administered exclusively by an Authorised Person; other Users are not entitled to add Venues to the Application or to administer them. The adding of a Venue is subject to approval by the Operator;

b) a public Event, i.e. an Event visible to all Users, may be created and administered exclusively by its Organiser or by an Authorised Person acting with the Organiser's consent; a public Event may also be created by the Operator. If an Event takes place on the premises of a Venue, the person who created the Event is responsible for ensuring that the Event takes place at the given place and time with the consent of the operator of the Venue or the owner of the premises concerned;

c) a private Event, i.e. an Event visible only to invited Users or the User's friends, may be created by any User as its Organiser.

8.2 The following rules apply to the content and creation of Events:

a) an Event must be real and sufficiently specific, i.e. it must contain a true name, place and time; it is prohibited to create Events that are fictitious, misleading, duplicate or Events whose occurrence is manifestly impossible;

b) the photograph and other visual content of an Event are subject to the rules under Articles 6.2 and 9.4 of the Terms; the photograph must relate to the Event and must not be capable of misleading Users as to the nature of the Event;

c) it is prohibited to use Events for sending unsolicited communications, for the repeated publication of identical or similar Events, or for publishing communications that do not have the nature of a real event (spam);

d) each User is entitled to create no more than one Event per calendar day; the Operator is entitled to change this limit and to enforce it technically;

e) the Operator is entitled to remove or not to publish an Event breaching these rules and to take measures pursuant to Article XIV of the Terms.

8.3 By taking over Venue Administration or by creating a public Event, the person declares and warrants that:

a) they are an Authorised Person within the meaning of these Terms and are authorised to represent and bind the Venue or the Organiser to this extent;

b) all information about the Venue or Event that they provide in the Application is true, accurate and up to date and will be updated without undue delay;

c) they act within the scope of their business or other similar activity, or within the scope of the activity of the person they represent, and, to the extent of Venue Administration, Event Administration and the Paid Services, they are not considered a consumer within the meaning of Section 419 of the Civil Code.

8.4 The Operator is entitled, but not obliged, to verify the status of an Authorised Person, in particular by consulting public registers, by requesting confirmation from the Venue's e-mail address or telephone number, or by requesting the submission of documents evidencing the authorisation (in particular an extract from the commercial or trade register, a power of attorney or other authorisation). Until verification has been carried out, the Operator is entitled to suspend Venue Administration or the publication of an Event. If the person concerned fails to provide the requested cooperation within a reasonable period, the Operator is entitled to withdraw Venue Administration or to remove the Event.

8.5 If the declaration under Article 8.3 of the Terms proves to be untrue, the Operator is entitled to immediately withdraw Venue or Event Administration from the person concerned, remove the content concerned, block their user account and claim compensation for the harm caused to the Operator or third parties as a result of the untrue declaration. Payments for the Paid Services made up to the moment of withdrawal shall not be refunded in such a case.

8.6 If more than one person claims Administration of the same Venue, the Operator shall decide on the allocation of Administration on the basis of the authorisations evidenced; the position of the actual owner or operator of the Venue shall always prevail. The Operator is entitled to withdraw Venue Administration at any time from a person who has ceased to be an Authorised Person.

8.7 Content published within Venue Administration or a public Event (in particular texts, photographs, offers and notifications) is considered commercial communication or advertising within the meaning of Act No. 40/1995 Coll., on the Regulation of Advertising, as amended. The Business User is solely responsible for the compliance of such content with legal regulations and for its truthfulness and completeness. In particular, advertising must not be misleading or hidden, must not be contrary to good morals and, in regulated sectors, in particular alcoholic beverages, must meet special statutory requirements, including the prohibition of targeting persons under 18 years of age and the prohibition of encouraging immoderate alcohol consumption. The Operator is entitled to reject, suspend or remove content that does not meet these requirements.

IX. User Content, Licence and Moderation

9.1 The Application enables Users to create Events and to insert other content, in particular texts, descriptions and photographs ("Content"). The User who published the Content is solely responsible for it. Events displayed in the Application are organised by Organisers, not by the Operator; the Operator is not responsible for the holding, course, quality, change or cancellation of an Event, or for the accuracy of information provided by the Organiser or another User.

9.2 By publishing Content, the User grants the Operator a free-of-charge, non-exclusive, territorially unlimited licence to use the Content, i.e. in particular to display, reproduce, modify and distribute it, to the extent necessary for the operation and promotion of the Application and for the duration of the user account. The User's rights to the Content are not otherwise affected.

9.3 By publishing Content, the User declares that they hold all rights necessary for its publication and that the use of the Content in the Application does not infringe the rights of third parties; upon the Operator's request, the User is obliged to evidence such rights.

9.4 It is prohibited to publish in the Application Content that is unlawful, misleading, pornographic, violent, hateful or harassing, that infringes the rights of third parties, in particular copyright, personality rights and trademark rights, or that promotes dangerous or unlawful conduct. Personal data and likenesses of third parties may be published only with their consent or on another legal basis. It is also prohibited to create fictitious or misleading Venues and Events and to make untrue Check-ins.

9.5 The Operator is not obliged to review Content in advance. However, the Operator is entitled to remove Content that is contrary to these Terms or legal regulations, or to restrict access to it, including before the publication of a public Event or Venue. The Operator shall notify the User concerned of such a measure and its reasons by a statement of reasons pursuant to Article 17 of the DSA Regulation, unless prevented from doing so by legal regulations. A complaint against a measure may be lodged in accordance with Article XVIII of the Terms. There is no legal entitlement to the publication of a Venue or Event in the Application.

9.6 If any person believes that content made available in the Application is unlawful, they are entitled to report it in accordance with Article 16 of the DSA Regulation by e-mail at support@heatmapa.com. The report must contain a clear identification of the content, a justification of its alleged unlawfulness and the contact details of the notifier if they request feedback. The Operator shall assess the report without undue delay and inform the notifier of the outcome where possible. Knowingly submitting unfounded reports is prohibited.

X. Notifications

10.1 The Application may send the User: a) system and service announcements, in particular announcements concerning account security, changes to the Terms and operational information; b) social notifications, in particular friend requests, invitations to Events and information about friends' activity; c) notifications of Business Users sent within the Paid Services or the functions of the Application.

10.2 The sending of push notifications is conditional on the permission granted in the settings of the User's device. The User is entitled to switch off the sending of notifications at any time in the settings of their device by switching off the Application's notifications; individual categories of notifications cannot be switched off separately. Switching off notifications does not affect communications displayed directly in the Application or e-mail communications necessary for the provision of the service.

10.3 Notifications sent by Business Users are subject to the Content rules under Articles 9.4 and 8.7 of the Terms. Each such notification is subject to approval by the Operator before it is sent. The Operator shall assess the notification without undue delay and is entitled not to approve it if it is contrary to the aforementioned rules, legal regulations or the technical and content limits set by the Operator, in particular the maximum permissible frequency of notifications towards a single User, targeting rules and message length; the Operator is entitled to change these limits. A notification that has not been approved is not sent and the corresponding drawdown of the Notification Package is not consumed. By approving a notification, the Operator does not assume responsibility for its content; the Business User is solely responsible for the content of the notification.

XI. Paid Services

11.1 The use of the basic functions of the Application is free of charge for Users. The Operator does not guarantee that the free version of the Application will remain free of charge in the future; the Operator will inform Users of any changes in advance.

11.2 The Paid Services are intended exclusively for Business Users. By ordering a Paid Service, the Business User confirms that they act within the scope of their business activity or the activity of the person they represent, and that they are not considered a consumer to this extent; the provisions of consumer protection legislation apply to the Paid Services only to the extent required by mandatory provisions of legal regulations.

11.3 The current scope of functions and the price of each Paid Service are displayed to the Business User in the Application always before the purchase is made; the decisive price is the price displayed in the Application at the moment of purchase. As at the effective date of these Terms, the prices of the Paid Services are: a) Notification Package CZK 100 per 100 notifications; b) Venue Premium CZK 399 per month; c) Event Boost CZK 149 per day. Prices are stated inclusive of value added tax. The Operator is entitled to change the prices unilaterally; a change of price does not apply to billing periods already paid for or to Notification Packages and Event Boosts already purchased. The Business User will be notified of an increase in the price of the Venue Premium subscription at least 30 days before it takes effect; the new price applies from the following billing period. If the Business User does not agree with the change of price, they are entitled to cancel the subscription in accordance with Article 11.4(b) of the Terms.

11.4 Venue Premium:

a) the billing period commences on the day of activation of the service and ends on the day whose numerical designation corresponds to the day of activation in the following calendar month; if there is no such day, the billing period ends on the last day of that month. The fee is payable in advance on the first day of the billing period;

b) the subscription is automatically renewed for the next billing period unless the Business User cancels it no later than 24 hours before the end of the current billing period, in a manner corresponding to the manner of purchase (App Store / Google Play subscription management, or the settings in the Application);

c) cancellation of the subscription does not affect the billing period already paid for; the Venue Premium functions remain active until its end. The Business User is not entitled to a refund of the fee paid or any pro rata part thereof if they cease to use the service before the end of the paid period, or if the provision of the service is terminated due to a breach of the Business User's obligations;

d) upon expiry of the subscription, the Venue is automatically transferred to the standard, non-highlighted display mode and access to the functions linked to Venue Premium is terminated; the Operator is not liable for harm arising as a result of the termination of the highlighting after the end of the paid period;

e) if the payment for the next billing period cannot be made, in particular due to the expiry of the payment card or insufficient funds, the Operator shall notify the Business User; if payment is not made even within an additional period of 14 days, the Operator is entitled to deactivate the Venue Premium service.

11.5 Notification Packages:

a) by purchasing a Notification Package, the Business User acquires the right to send via the Application the number of notifications chosen and paid for by them, to Users determined according to the targeting rules available in the Application. The fee is payable upon purchase;

b) the validity of unused notifications may be limited in time; any such limitation is stated in the Application before the purchase. Unused notifications are not replaced after the expiry of their validity or upon termination of the Business User's account, and the fee is not refunded;

c) the sending of a notification means its submission for delivery following approval pursuant to Article 10.3 of the Terms. The Operator does not guarantee the display of a notification to a specific User, as delivery depends on the settings of the device and the Application on the User's side pursuant to Article 10.2 of the Terms; the non-display of a notification for these reasons does not give rise to a claim for a refund of the fee or substitute performance;

d) the content of notifications is subject to Article 10.3 of the Terms.

11.6 Event Boost: upon purchase of the service, the Event is highlighted on the map for the period chosen at the time of purchase, but no longer than until the moment the Event takes place. The fee is one-off and payable upon purchase. If the Event is cancelled or removed for reasons on the part of the Business User, including a breach of these Terms, the fee is not refunded.

11.7 Payment for the Paid Services is made in the manner indicated in the Application before the purchase, i.e. in the form of an in-app purchase via the App Store (Apple) or Google Play (Google), or via a payment gateway. In the case of a purchase via the App Store or Google Play, the management of the order, payment and any refunds is ensured by the operator of the relevant store in accordance with its terms. Tax documents are issued and delivered exclusively in electronic form, to which the Business User consents. The Business User is obliged to provide and maintain correct and complete billing details.

11.8 In the event of a manifest error in the price of a Paid Service, in particular a technical error or a price manifestly not corresponding to the value of the service, the Operator is entitled to cancel the order and refund the fee received; in such a case, the contract is considered not to have been concluded due to the absence of serious intent. If the Business User initiates an unjustified payment dispute (chargeback) for a duly provided service, the Operator is entitled to claim compensation for the costs associated with the administration of the dispute and to suspend the Business User's access to the Paid Services.

11.9 The Paid Services are visibility-enhancing services. The Operator does not guarantee the achievement of any business result, in particular the number of views, footfall at the Venue or Event, or the number of interactions or conversions.

11.10 Venues and Events are ranked and displayed on the map and in the results in the Application algorithmically. The main parameters determining the ranking are: distance from the User's current location, relevance to the User's preferences and previous interactions, popularity and currency. Purchased highlighting pursuant to Articles 11.4 and 11.6 of the Terms increases visibility compared to other results; however, the other parameters continue to be taken into account. Paid highlighting is clearly recognisable in the Application. The Operator does not favour its own services or the services of persons controlled by it in the ranking.

XII. Tickets and Reservations

12.1 Where the User uses a third-party reservation or sales system to which the Application links, the User carries out the reservation, the purchase of tickets and the conclusion of related contracts alone, in their own name and on their own account, directly with the relevant third party. In such a case, that third party is solely responsible for the performance of contractual obligations, the holding of the Event, the refund of admission fees and the handling of complaints. The Operator is not responsible for the functionality, availability or content of external reservation and sales interfaces.

12.2 A Business User who places a link to an external system pursuant to Article 12.1 of the Terms in the Application is responsible for its functionality and for ensuring that Users are duly informed by the third party about the terms of purchase and the processing of personal data.

XIII. Prohibited Conduct

13.1 The User undertakes not to:

a) use the Application for an unlawful purpose or in a manner prohibited by these Terms;

b) stalk, monitor, intimidate or harass other persons (Article 7.3 of the Terms);

c) create fake accounts, untrue Check-ins, fictitious Venues or misleading Events, or in any way falsify or spoof their location (GPS spoofing);

d) impersonate another Venue, brand or person or take over Venue or Event Administration without authorisation;

e) interfere with the security, technical substance or content of the Application, attempt to gain access to parts of the Application excluded from public use, in particular the source code, or circumvent technical measures;

f) use robots, crawlers, scrapers or other automated means to access the Application or to extract data from it, including automated calls to the application programming interface (API), or collect data about other Users, their location or contacts;

g) send unsolicited commercial communications (spam), chain messages, advertising without the Operator's consent or messages containing viruses or other malicious code, or misuse notifications, invitations or Events for unsolicited communication;

h) disrupt the use of the Application by other Users or overload or damage its operation;

i) knowingly submit unfounded reports of content;

j) use the Application in a manner that would distract them while driving a vehicle or performing another activity requiring attention;

k) make the functions of the Application or the Paid Services available to third parties, whether for consideration or free of charge, without the Operator's prior consent.

XIV. Measures of the Operator and Restriction of Access

14.1 The Operator is entitled to block or cancel a user account, withdraw Venue or Event Administration or remove a User's content if:

a) the User has breached these Terms or obligations laid down by legal regulations;

b) the User misuses the Application or uses it in a manner for which it is not intended;

c) the User has published content contrary to these Terms, good morals or legal regulations;

d) the Operator has been requested to do so by a public authority on the basis of an enforceable decision;

e) the User has initiated an unjustified payment dispute (chargeback) for a service duly provided to them;

f) the User has made an untrue declaration under Article 8.3 of the Terms or has ceased to be an Authorised Person;

g) the User has been inactive for a prolonged period.

14.2 The measure taken shall correspond to the seriousness and frequency of the breach. The Operator is further entitled to immediately suspend access to the Application or to selected services in the event of serious circumstances, in particular a significant change to the Application, security or technical problems, or the unavailability of external services on which the operation of the Application depends.

14.3 The Operator shall notify the User concerned of the measure and its reasons, where possible, with reasonable advance notice. The User is entitled to lodge a complaint against a decision to restrict access or remove content by e-mail at support@heatmapa.com within 6 months of the delivery of the decision.

XV. Intellectual Property Rights

15.1 The Application as a whole and its individual parts, in particular the design, graphics, logos, texts and source code, are a copyrighted work within the meaning of Act No. 121/2000 Coll., on Copyright and Rights Related to Copyright (the Copyright Act), as amended. All rights to the Application belong to the Operator or its licensing partners.

15.2 By using the Application, the User acquires a limited, non-exclusive, non-transferable, revocable and non-sublicensable licence to download, install and use the Application on a device that they own or lawfully use, exclusively for personal, non-commercial purposes in accordance with these Terms. A Business User is additionally entitled to use the Application to the extent of Venue Administration, Event Administration and the Paid Services.

15.3 Without the Operator's prior written consent, no one is entitled to copy, distribute, publish or use the content of the Application for commercial purposes; the same applies to the Heatmapa logo and designation. The User is not entitled to modify the Application, create derivative works from it or seek to obtain its source code, unless such a procedure is expressly permitted by legal regulations.

15.4 If the User provides the Operator with feedback, suggestions or comments on the Application, they grant the Operator, upon sending them, a free-of-charge authorisation, unlimited in time and territory, to use them in any manner, including modifications and incorporation into the Operator's products or their further development, without any entitlement to remuneration.

XVI. Availability and Changes to the Application

16.1 The Operator shall make reasonable efforts to ensure the continuous availability of the Application but does not guarantee uninterrupted availability. Outages may occur in particular due to maintenance, updates or unforeseeable circumstances. The Operator will, where possible, inform Users of planned outages in advance.

16.2 The Operator is entitled to issue updates to the Application and to add or remove its functions, in particular for the purpose of improving functionality, performance and security. The Operator reserves the right to modify the provision of the Application or any part thereof, or to suspend or permanently terminate it. The Operator is not liable for harm caused by the suspension or interruption of the operation of the Application for reasons beyond its control.

XVII. Liability for Harm and Indemnification

17.1 The Operator does not guarantee that the Application will be provided continuously and without defects, or that the results, recommendations and information displayed will always be accurate and reliable. In particular, the Operator is not responsible for:

a) the accuracy, completeness and currency of information about third-party Venues and Events;

b) the accuracy of the displayed location; the location of Users and places is determined by device technologies and may show deviations;

c) the holding, course, quality, change or cancellation of Events;

d) the availability, prices and validity of tickets or reservations with third parties;

e) the content of third-party websites and services to which the Application refers;

f) the conduct of other Users, Business Users and Organisers.

17.2 The Operator's liability for content stored by Users is excluded or limited to the extent provided for by Act No. 480/2004 Coll. and the DSA Regulation. Nothing in these Terms limits liability that cannot be limited under legal regulations, in particular liability towards a consumer for harm caused to a person's natural rights or caused intentionally or through gross negligence.

17.3 The aggregate liability of the Operator for all harm incurred by a Business User in connection with the Paid Services and Venue or Event Administration is limited to the amount actually paid by the Business User to the Operator for the Paid Services in the period of 3 months immediately preceding the occurrence of the harm. The Operator is not liable to the Business User for lost profit, loss of data or indirect or consequential damage.

17.4 The Business User undertakes to compensate the Operator for all harm, costs and expenses, including reasonably incurred costs of legal representation, incurred by the Operator as a result of: a) a breach of these Terms by the Business User; b) the untruthfulness of the declaration under Article 8.3 of the Terms; c) the unlawfulness of content published by the Business User; or d) claims of third parties related to the Business User's Venue or Event.

XVIII. Complaints and Dispute Resolution

18.1 Complaints and claims concerning the Operator's services may be raised by e-mail at support@heatmapa.com. The Operator shall handle the complaint without undue delay, at the latest within the time limits laid down by legal regulations.

18.2 If a dispute between the Operator and a User who is a consumer cannot be resolved by agreement, the User is entitled to submit a proposal for out-of-court resolution of the consumer dispute to the body for out-of-court resolution of consumer disputes, which is the Czech Trade Inspection Authority (Česká obchodní inspekce), Central Inspectorate – ADR Department, Gorazdova 1969/24, 120 00 Prague 2, e-mail: adr@coi.gov.cz, web: adr.coi.gov.cz.

18.3 The authority competent for digital services under the DSA Regulation is the Digital Services Coordinator, which is the Czech Telecommunication Office (Český telekomunikační úřad), Sokolovská 219, 190 00 Prague 9, e-mail: podatelna@ctu.cz, web: www.ctu.gov.cz.

18.4 Disputes between the Operator and a Business User arising in connection with the Paid Services or Venue or Event Administration which cannot be resolved amicably shall be decided by the courts of the Czech Republic having subject-matter jurisdiction; the court with territorial jurisdiction shall be the court in whose district the Operator has its registered office.

XIX. Final Provisions

19.1 If any provision of these Terms is or becomes invalid or ineffective, this shall not affect the other provisions of the Terms that are severable from the invalid or ineffective provision.

19.2 The User is not entitled to assign their account or the rights and obligations under these Terms to a third party without the Operator's prior written consent. The Operator is entitled to transfer its rights and obligations under these Terms to a third party; the Operator will inform the User of such a transfer.

19.3 The Operator is entitled to unilaterally amend these Terms to a reasonable extent, in particular due to changes in legal regulations, technical developments or changes in the scope of the services provided. The User will be notified of amendments within a reasonable period before they take effect, at least 15 days in advance, in the Application or by e-mail; the Operator is not obliged to observe this period where it fulfils a legal obligation or averts an imminent security risk. If the User does not agree with an amendment, they are entitled to cancel their account before it takes effect, thereby terminating the contractual relationship. By continuing to use the Application after the amendment takes effect, the User expresses consent to the revised wording of the Terms.

19.4 The legal relationships between the Operator and the User or the Business User are governed by the law of the Czech Republic, in particular the Civil Code. The choice of law does not deprive consumers of the protection afforded to them by mandatory provisions of the law of the state of their habitual residence.

19.5 The Terms are drawn up in the Czech language. Any translation into another language is for information purposes only; the Czech version is the authoritative version.

19.6 These Terms enter into force and effect on 23 July 2026. The current version of the Terms is available at heatmapa.com/termsofuse and heatmapa.cz/termsofuse; previous versions are available from the Operator.